CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
WEDNESDAY, June 12, 2019
7:00 P.M.
Sherbondy Village Auditorium
215 Perviz Avenue
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 7:00 p.m. on Wednesday, June 12, 2019 at the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

2. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, Commissioner Sherelean Bass, and Commissioner Alvin Burke. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Burnadette Norris-Weeks, and City Clerk Joanna Flores. Commissioner Joseph L. Kelley was not in attendance.

3. INVOCATION:

The invocation was delivered by Commissioner Sherelean Bass.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

There were no items pulled from the Consent Agenda.

7. APPROVAL OF AGENDA:

It was moved by Commissioner Burke, seconded by Vice Mayor Davis to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Not Present
Commissioner Bass	Yes
Mayor Pigatt	Yes

8. APPROVAL OF MINUTES:

Regular Commission Meeting Minutes – May 8, 2019

It was moved by Commissioner Bass, seconded by Commissioner Burke to approve the minutes from the Regular Commission Meeting of May 8, 2019.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Not Present
Commissioner Bass	Yes
Mayor Pigatt	Yes

9. DISTRICT ONE/DISTRICT TWO - COUNTY COMMISSIONER REPORT:

Larry Gardner, Commissioner Barbara J. Jordan's office, District I, sent his condolences to Commissioner Kelley for the passing of his mother, Ms. Ollie B. Kelley. He also congratulated the new City Attorney Burnadette Norris-Weeks on her appointment.

Commissioner Burke asked for information regarding the Mom and Pop Grants so it can be forwarded to the small business owners.

Mr. Gardner said he will provide the information.

10. PUBLIC PRESENTATION:

11. CITIZENS' INPUT:

Virginia Harris-Cook, 3114 NW 204th Lane, Miami Gardens, Florida, said her church the Eye Opener Missionary Ministry is new in the City and they would like to work with the City to correct the drainage problem in front of the church because when it rains you cannot get in or out. She extended an invitation for everyone to come to the church for service.

Eric Redmon, 2766 NW 131st Street, Opa-locka, Florida, said there seems to be a women's movement going on here and he feels the city clerk needs to have a contract because she works hard. Also, the police officers have been welcomed back to Walmart to provide off duty services and they should receive commendations. He is concerned that not enough Code Enforcement Officers are on the streets and that is not right; they should not be protected behind certain commissioners.

Audrey Dominguez, 1147 Jann Avenue, Opa-locka, Florida, said three (3) meetings ago she submitted an application for the Housing Authority & Nuisance Abatement Board and it has yet to be considered. She said she was waiting to see if she was wrong about the mayor; but it seems she was right. All personal differences aside, she does not know the reason for her not being appointed by the mayor. She does not know if it is because she is Hispanic, but she has not been appointed yet and does not know why.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, Florida, thanked everyone who sent their condolences on the passing of her mother last month. She sympathized with Commissioner Kelley because she knows what he is going through. She asked the commission to look into some old legislation she sponsored as a commissioner regarding the environmental state at the gardens apartments. She was under the impression that the three (3) appointed officials had contracts and she would not work for the City if she did not have a contract. She said job appraisals should be done annually because the residents are appraising the work of the commission.

Debra Pinero, 3030 NW 134th Street, Opa-locka, Florida, said she owns the property at the address mentioned previously. She said when the lien search was done when she purchased the property a few years ago, it said there was a balance for water. She tried to clear it up with Yvette Harrell, but to this day it has not been rectified.

12. ACTION ITEMS:

13. CONSENT AGENDA:

1 (13-1). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE PURCHASE ORDERS, IN AM AMOUNT NOT TO EXCEED THIRTY-ONE THOUSAND SIX HUNDRED SITY-SIX DOLLARS AND THIRTY EIGHT CENTS ($31,666.38), TO GROWER'S EQUIPMENT CO.-MIAMI, IN RELIANCE UPON NATIONAL JOINT POWERS ALLIANCE CONTRACT NUMBER 042815, FOR THE PURCHASE OF A MINI EXCAVATOR; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

2 (13-2). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE PURCHASE ORDERS, IN AN AMOUNT NOT TO EXCEED THIRTY-THREE THOUSAND FOUR HUNDRED SEVENTY-ONE DOLLARS AND SEVENTY-TWO CENTS ($33,471.72), TO GROWER'S EQUIPMENT CO.-MIAMI, IN RELIANCE UPON NATIONAL JOINT POWERS ALLIANCE CONTRACT NUMBER 042815, FOR THE PURCHASE OF A SKID STEER LOADER; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

3 (13-3). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE PURCHASE ORDERS, IN AM AMOUNT NOT TO EXCEED EIGHT THOUSAND NINE HUNDRED DOLLARS ($8,900.00), TO GROWER'S EQUIPMENT CO.-MIAMI, IN RELIANCE UPON NATIONAL JOINT POWERS ALLIANCE CONTRACT NUMBER 042815, FOR THE PURCHASE OF A TRAILER AND GRAPPLE BUCKET; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

4 (13-4). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH ENVIRONMENTAL PRODUCTS, INC., FOR THE EMERGENCY REPAIR OF THE JET-VAC SEWER TRUCK, IN AN AMOUNT NOT

TO EXCEED THIRTY-NINE THOUSAND ONE HUNDRED SIXTY-SIX DOLLARS AND SIXTY-EIGHT CENTS ($39,166.68); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

5 (13-5). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO PIGGYBACK ON THE CITY OF HOLLYWOOD'S CONTRACT WITH ENVIROWASTE SERVICES GROUP, INC. (EXHIBIT "A"), TO PERFORM GRAVITY SEWER ASSESSMENTS FOR SYSTEMS5, 7 AND 8, IN AN AMOUNT NOT TO EXCEED FORTY-NINE THOUSAND FOUR HUNDRED NINETY-TWO DOLLARS AND NINTY-FIVE CENTS ($49,492.95); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

6 (13-6). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO UTILIZE H & R PAVING, INC. TO PERFORM TEMPORARY STREET REPAIRS IN AN AMOUNT NOT TO EXCEED THIRTY THOUSAND EIGHT HUNDRED SIXTEEN DOLLARS AND NINTY-SEVEN CENTS ($30,816.97), IN RELIANCE UPON MIAMI-DADE COUNTY'S WASD STREET REHABILITATION CONTRACT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Manager*

7 (13-7). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, DIRECTING THE CITY MANAGER TO PURSUE ALL NECESSARY STEPS TO PURCHASE A USED BUS FOR THE SENIORS PROGRAM; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by Commissioner Kelley*

8 (13-8). A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, EXTENDING THE CITY OF OPA-LOCKA EDUCATIONAL SCHOLARSHIP PROGRAM DEADLINE TO JUNE 28, 2019; INSTRUCTING THE COMMUNITY RELATIONS, RECREATION AND ACTIVITIES BOARD TO RECONVENE DURING THE WEEK OF JULY TO REVIEW SAID APPLICATIONS; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by City Commission*

The above resolutions were read by Attorney Norris-Weeks.

It was moved by Vice Mayor Davis, seconded by Commissioner Burke to pass the resolutions.

The motion on the resolutions passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Not Present
Commissioner Bass	Yes
Mayor Pigatt	Yes

14. NEW ITEMS:

15. PLANNING & ZONING:

A. PUBLIC HEARINGS:

B. APPEALS:

16. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING ORDINANCE(S):

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE AN INTERLOCAL AGREEMENT WITH THE MIAMI-DADE COUNTY STORMWATER UTILITY FOR SHARED STORMWATER MANAGEMENT FOR FISCAL YEARS 2020 THROUGH 2024, IN AN AMOUNT NOT TO EXCEED TWO HUNDRED FIFTY-TWO THOUSAND ONE HUNDRED SIXTY-TWO DOLLARS ($252,162.00); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFETIVE DATE. *Sponsored by City Manager*

The above ordinance was read by Attorney Norris-Weeks.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Burke, seconded by Vice Mayor Davis to pass the ordinance.

There being no discussion, the motion on the ordinance passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Not Present
Commissioner Bass	Yes
Mayor Pigatt	Yes

B. SECOND READING ORDINANCE(S)/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AMEND ORDINANCE 17-01 FORT HE PLANNING & ZONING BOARD, TO ESTABLISH CRITERIA FOR THE MINIMUM NUMBER OF MEMBERS TO CONSTITUTE A QUORUM FOR ALL MEETINGS AND TO EXPAND THE QUALIFICATIONS FOR MEMBERSHIP TO BE A RESIDENT OR PROPERTY OWNER IN THE CITY OF OPA-LOCKA AND TO ADD REAL ESTATE PROFESSIONAL TO THE CATEGORY OF QUALIFIED OCCUPATIONS; PROVIDING A SEVERABILITY CLAUSE; PROVIDING A CONFLICT AND REPEALER CLAUSE AND RESCINDING ALL ORDINANCES IN CONFLICT; PROVIDING FOR AN EFFECTIVE DATE. (first reading/public hearing held on May 08, 2019). *Sponsored by City Manager*

The above ordinance was read by Attorney Norris-Weeks.

Mayor Pigatt opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Bass, seconded by Commissioner Burke to pass the ordinance.

There being no discussion, the motion on the ordinance passed by a 4-0 vote.

Commissioner Burke	Yes
Vice Mayor Davis	Yes
Commissioner Kelley	Not Present
Commissioner Bass	Yes
Mayor Pigatt	Yes

C. RESOLUTIONS/PUBLIC HEARINGS:

17. CITY MANAGER'S REPORT:

Acting City Manager Daughtrey introduced the new City budget administrator, Ms. Dunleavy. She has been working with all of the department heads with their individual budgets and it will continue into next week. The summer youth employment program will begin on Monday. There are eighty five slots and sixty six of them have been filled, they will work to register additional youth so they can benefit from working over the summer. The CITT audit will be on the 18th and once that is completed, it will bring additional funding into the City. Cairo Lane project is still moving forward and is expected to be completed by September 30, 2019. The historic City Hall project will also be moving forward so that the work that has already been completed is not destroyed. They are working on obtaining the body cameras for the police officers and GPS for the police vehicles. Cameras have been installed in the utility billing department so that they can minimize the number of complaints they have been receiving from the residents regarding customer service. Cameras have also been installed in places where there has been known dumping so they can hold the offenders accountable for illegal dumping.

Commissioner Burke asked the manager to do whatever it takes to complete the historic City Hall.

Attorney Norris-Weeks said she spoke with the attorney for the company that is doing the work and they are trying to set up a meeting. After they meet, she will provide the commission with a report at the next meeting.

Commissioner Burke asked about the Music in the Park event.

Parks and Recreation Director Charles Brown said they were waiting for the company who was organizing the event to obtain the event insurance and once this is done they can move forward with planning and implementing.

Commissioner Bass asked the manager how many of the youth who applied for the summer jobs were residents.

Acting City Manager Daughtrey said they made sure all of the youth were residents.

Vice Mayor Davis said he hopes the City will do something to recognize former Commissioner Ollie B. Kelley since she was an elected official for the City for many years.

Attorney Norris-Weeks said she will look into the matter and provide a response to the commission.

Mayor Pigatt thanked the manager for all he is doing to address all of the issues in and around the City. He then asked for clarity regard the curfew that Miami-Dade County has just announced and how it affects youth in the City.

Police Chief James Dobson came before the commission and explained that the ordinance had been on the books since the nineties it was just not being enforced. It is now being put back into effect since there has been a rise in offenses being committed by juveniles. It is not to put the youth in jail, but to hold the parents accountable and have the streets clear after dark which is the time most of the offenses are happening.

Mayor Pigatt said that funding was requested for the purchase of office furniture for the offices of the mayor and commission and the shared conference room. He hopes those funds can be made available so the spaces can be furnished and be presentable.

Acting City Manager Daughtrey said he checked with the previous Chief Inspector General and he supposedly stated that there was two thousand dollars ($2,000.00) allocated for each commissioner and that is the only thing he has been able to determine. He said the commission collectively will have to direct him on how to spend the funds.

Attorney Norris-Weeks said they can bring back a resolution to make sure it's clear for the mayor & commission furniture and conference room furniture.

Attorney Norris-Weeks announced an Attorney/Client Executive Session regarding George Suarez vs. City of Opa-locka Case No. 2017-008285-CA-01 (43) to be held on June 26, 2019 at 6:30 p.m. at 215 Perviz Avenue, Opa-locka, Florida 33054.

Mayor Pigatt asked everyone to keep The Kelley Family in their prayers at this time.

18. OFFICIAL BOARD REPORTS:

19. MAYOR/COMMISSION REPORT:

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the commission, it was moved by Commissioner Burke, seconded by Vice Mayor Davis to adjourn the meeting at 7:52 p.m.

MAYOR

ATTEST:



CITY CLERK